

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 20
JUDICIAL OFFICER: MELISSA O'CONNELL
HEARING DATE: 03/26/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Local Rule 3.43(2).)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED.** Dept. 20's email address is: dept20@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 20 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling must be attached to the proposed order when submitted to the Court for issuance of the order.

Discovery Law & Motion

1. 9:00 AM CASE NUMBER: C24-01911
CASE NAME: SOPHIA COHN VS. LOZANO SMITH, LLP, A CALIFORNIA LIMITED LIABILITY PARTNERSHIP
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO PLTFS SPECIAL INTERROGATORIES, SET 3
FILED BY: COHN, SOPHIA
TENTATIVE RULING:

Plaintiff' Motion to Compel Further Responses to Special Interrogatories Nos. 34–47 is GRANTED. Defendant is to provide object-free, verified code-compliant responses by May 1, 2026. Plaintiff's request for sanctions is GRANTED, but the amount requested is unreasonable and is reduced to 1 hour of work at \$700 per hour. Defendant is to pay

Plaintiff \$700 in sanctions by May 1, 2026.

In summary, Plaintiff seeks *the number* of emails managing partner at Defendant's firm, Karen Rezendes, sent to Plaintiff, Sophia Cohn, each month from June 2022 to July 2023.

According to Plaintiff's complaint, on or around August 2022, after Plaintiff did not receive a promotion, the Defendants informed her that Ms. Rezendes, a managing partner, would begin mentoring her. Plaintiff maintains that it was explained to her that this mentorship was an opportunity for her to build a stronger relationship with Ms. Rezendes, with whom she had not previously worked, with the hope that she would gain Ms. Rezendes' approval for future promotion. Plaintiff maintains that while working under Ms. Rezendes, Ms. Rezendes would not provide much guidance, she would unnecessarily assign urgent deadlines, and she would frequently ignore Plaintiff's emails. On or around March 2023, there was another round of promotions at Defendant's firm and Plaintiff again was not promoted.

Defendant provided identical objections to Plaintiff's request for special interrogatories Nos. 34–47 which seek the number of emails Ms. Rezendes sent to Plaintiff from June 2022 to July 2023. Defendant maintains that the interrogatories are “overly broad as to time and scope”, “vague, ambiguous, unduly burdensome, and harassing”, and protected by “other applicable privileges.”

Ambiguity is a valid objection only if ambiguity precludes an intelligent reply. (See *Cembrook v. Superior Court* (1961) 56 Cal.2d 423, 430.) Plaintiff's request for emails sent by Ms. Rezendes to Plaintiff during specific months and year does not preclude an intelligent reply, rather it is quite straight forward. All emails from Ms. Rezendes, regardless of their nature, appear relevant at this juncture based on Plaintiff's assertions.

Furthermore, an objection that the discovery is overly broad is only valid if it causes an undue burden or is irrelevant to the subject matter. (See C.C.P. §§2017.010 and 2017.020.) While Defendant maintains that Ms. Rezendes, as a managing partner, sends numerous emails firm-wide and therefore obtaining how many emails were to Plaintiff would be unduly burdensome also is without merit. Plaintiff is not asking for the content of the emails, she is simply requesting the number sent to her by Ms. Rezendes. This does not appear to be unduly burdensome as a law firm often needs to track emails sent as they work in billable hours and anything that would affect the firm office-wide would seem of great importance to the firm to also track. Additionally, the number of emails between Ms. Rezendes and Plaintiff is also not irrelevant to the subject matter. It would appear to this court that it would be relevant to both sides to identify how many emails Plaintiff was included in from Ms. Rezendes, including office-wide emails, as this evidence would one way or another tend to reveal whether Ms. Rezendes excluded Plaintiff from certain communications or would ignore emails.

To the extent any of the emails may have client-related communications or implicate other privileges, another contention raised by the Defense, again Plaintiff is not seeking the contents

of the emails in her Special Interrogatory requests and the protective order that is already in place between the parties should also alleviate these concerns.

Plaintiff's Motion to Compel is GRANTED. Defendant is ordered to provide objection-free, verified code-compliant responses to Special Interrogatories 34-47 by May 1, 2026.

Generally, monetary sanctions are mandatory as to parties losing discovery motions, unless courts find substantial justification or that they would be unjust. (E.g., *Foothill Properties v. Lyon/Copley Corona Assocs., L.P.* (1996) 46 Cal.App.4th 1542, 1557-1558.) “[T]he phrase “substantial justification” has been understood to mean that a justification is clearly reasonable because it is well grounded in both law and fact.” (*Kwan Software Engineering, Inc. v. Hennings* (2020) 58 Cal.App.5th 57, 75.) “If the party seeking a monetary sanction meets its burden of proof, the burden shifts to the opposing party attempting to avoid a monetary sanction to show that it acted with ‘substantial justification.’” (*Doe v. U.S. Swimming, Inc.* (2011) 200 Cal.App.4th 1424, 1435.)

“The trial court has broad discretion in deciding whether to impose sanctions and in setting the amount of monetary sanctions.” (*Cornerstone Realty Advisors, LLC v. Summit Healthcare Reit, Inc.* (2020) 56 Cal.App.5th 771, 789.)

Here, the court finds that Defendant's objections to Plaintiff's special interrogatories 34-47 were without merit and code-compliant responses are required. The Court does not find circumstances to excuse ordering sanctions, but the court does find that the sanctions requested in the amount of \$3,000 is unreasonable.

Defendant is ORDERED to pay Plaintiff sanctions in the amount of \$700 by May 1, 2026.

2. 9:00 AM CASE NUMBER: MSC21-01498
CASE NAME: BARRY HOSIER VS. CAMINO RAMON TERRACE OWNER'S ASSOCIATION
*HEARING ON MOTION FOR DISCOVERY COMPEL COMPLIANCE WITH DEPOSITION
FILED BY: CAMINO RAMON TERRACE OWNER'S ASSOCIATION
TENTATIVE RULING:

Camino Ramon Terrace Owner's Association's Motion to Compel is GRANTED. The deposition of M3 Construction General Contractor, Inc.'s Person Most Knowledgeable is to take place on or before April 24, 2026. The Association's request for sanctions is GRANTED, however, the amount requested is unreasonable and is reduced to \$860. 2 hours of work at \$400 per hour, plus \$60 filing fee. M3 is to pay sanctions in the amount of \$860 by April 24, 2026.

California Code of Civil Procedure (C.C.P.) section 205.220 does not state that a party seeking to depose an individual cannot do so “unilaterally.” In fact, the statute expressly requires that a date be set and noticed. (*Id.* subd. (a)(2).) While this court observes that it